

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORKChristopher Collins

18 CV 2927

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

- Police Officer: Jennifer Rosario
Shield # 10604- Police Officer: Gabriel Dones
Shield # 13346

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(~~Prisoner~~ Complaint)Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff

Name Christopher CollinsID # 16A4548Current Institution Groveland Correctional FacilityAddress P.O. Box 50
Seneca, N.Y. 14556-0050

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1

Name Jennifer Rosario Shield # 10604Where Currently Employed Manhattan Transit Task ForceAddress Transit Borough ManhattanTransit District # 4

Defendant No. 2 Name Gabriel Dones Shield # 13346
 Where Currently Employed Manhattan Transit Task Force
 Address Transit Borough Manhattan
Transit District # 4

Defendant No. 3 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 4 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 5 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

- A. In what institution did the events giving rise to your claim(s) occur?
The events given to rise my claims occurred in the New
York City subway system, not in any institution
- B. Where in the institution did the events giving rise to your claim(s) occur?
The events given to rise my claim occurred in the New
York City subway system, not in any institution
- C. What date and approximate time did the events giving rise to your claim(s) occur?
February 12, 2013 at approximately 5:10pm

D. Facts: On February 12, 2013 at approximately 5:10pm I was falsely arrested by two New York City Police Detectives Officer Jennifer Rosario shield # 10604 and Officer Gabriel Dones # 13346 for the crime of Persistent Sexual Abuse P.L. 130.53. Then on April 20, 2015 in the Supreme Court of the State of New York, New York County before Justice Honorable Robert Stolz. The criminal proceedings under case number 101889-2013 ended in my favor by being acquitted of all charges against me at a jury trial. The case itself indicates that there was no evidence, victim and nothing at all to substantiate the accusatory instrument / charges against me. That these two arresting officers had no probable cause / no reason at all to arrest me. Also my civil rights which is guaranteed by the United States Constitution were violated which is why I am pursuing a Civil Rights Act, 42 U.S.C.A Section 1983 Federal Claims for False Arrest against the New York City Police Department, False Imprisonment and Malicious Prosecution against the New York State Supreme Court.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. During my false imprisonment incarcerated in the custody of New York City Department of Corrections on June 30, 2014 in an unprovoked attack by another inmate I sustained a severe head injury which included swelling of my face and a left fractured jaw and was taken by ambulance to East Elmhurst Hospital for treatment.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ___ No ___ N / A

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ____ No ____ Do Not Know ____ N / A

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ____ No ____ Do Not Know ____ N / A

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ____ No ____ N / A

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ____ No ____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

N / A

1. Which claim(s) in this complaint did you grieve? _____

N / A

2. What was the result, if any? _____ N / A

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

N / A

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

I did not file any grievance under (PLRA) 42 U.S.C 1997 e(a) because my claims/complaints didn't arise in a institution / correctional facility, my claims arised on the street / New York City subway system

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any: _____

N / A

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____

N / A

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). _____

In terms of relief I am asking the court to compensate me in the amount of 30 million dollars (\$ 30,000,000.00) for all the pain and suffering that I had to endure due to being falsely arrested, falsely imprisoned and maliciously prosecuted for a crime that I did not commit

VI. Previous lawsuits:

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes _____ No ☒

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes _____ No ☒

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 25 day of March, 2018.

Signature of Plaintiff

Al Ah

Inmate Number

16A4548

Institution Address

Groveland Correctional Facility

P.O. Box 50

Songea, N.Y. 14556-0050

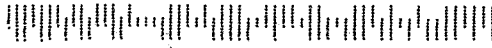
Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 25 day of March, 2018, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Al Ah

LEGAL MAIL



New York, N.Y. 10007

500 Pearl Street, Room 230

Daniel Patrick Moynihan United States Court

Southern District of New York

United States District Court

To: Pro Se Office

USM
SDNY